

Discovery Law & Motion

18. 9:01 AM CASE NUMBER: C23-02801
CASE NAME: MARIE MILLER VS. JOSHUA SHAPLAND
***HEARING ON MOTION FOR DISCOVERY COMPEL DEFENDANT JOSHUA SCOTT SHAPLAND'S**
FURTHER RESPONSES TO FORM INTERROGATORIES SET 1
FILED BY: MILLER, MARIE
TENTATIVE RULING:

The Court, *sua sponte*, continues this matter to **August 3, 2026, 9:00 am in Department 34**. The Court shall issue a further order.

19. 9:01 AM CASE NUMBER: C23-02801
CASE NAME: MARIE MILLER VS. JOSHUA SHAPLAND
***HEARING ON MOTION FOR DISCOVERY COMPEL DEFENDANT JOSHUA SCOTT SHAPLAND'S**
FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET 1
FILED BY: MILLER, MARIE
TENTATIVE RULING:

The Court, *sua sponte*, continues this matter to **August 3, 2026, 9:00 am in Department 34**. The Court shall issue a further order.

20. 9:01 AM CASE NUMBER: C23-02801
CASE NAME: MARIE MILLER VS. JOSHUA SHAPLAND
***HEARING ON MOTION FOR DISCOVERY COMPEL DEFENDANT JOSHUA SCOTT SHAPLAND'S**
FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET 1
FILED BY: MILLER, MARIE
TENTATIVE RULING:

The Court, *sua sponte*, continues this matter to **August 3, 2026, 9:00 am in Department 34**. The Court shall issue a further order.

Law & Motion
ADD-ON

21. 9:00 AM CASE NUMBER: C24-01078

CASE NAME: JOHN CARDENAS, JR. VS. AMERICA WEST MEDICAL TRANSPORT

***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT**

TENTATIVE RULING:

Before the Court is a motion for leave to file a first amended complaint by Plaintiffs John Cardenas, Sr. and Geri Cardenas. This motion is opposed by Defendants Antioch Dunes Healthcare, LLC and 1210 A Street.

Plaintiffs' motion is **GRANTED**. Plaintiffs shall file their First Amended Complaint within ten days of this hearing.

Request for Judicial Notice

In support of their opposition, Defendants request judicial notice of five items: (1) the Court's November 7, 2024 ruling on their demurrer to the Complaint, (2) Plaintiffs' November 21, 2024 *ex parte* application for leave to file a first amended complaint and the Court's December 17, 2024 order granting that application, (3) Plaintiffs' July 29, 2025 Opposition to Defendants' Motion for Summary Judgment and supporting papers, (4) the Court's October 26, 2025 tentative ruling on Defendants' Motion for Summary Judgment, and (5) the Court's December 4, 2025 ruling adopting the tentative ruling as the final ruling on Motion for Summary Judgment. (Defendant's Request for Judicial Notice ("RJN"), 2:6-19.)

Each of these items is a record of this Court. Judicial notice of the records of "any court of this state" is authorized under Evidence Code section 452(d). (Evid. Code, § 452(d)(1).) The Court takes judicial notice of the existence of identified court records, the fact that they were filed or issued, the dates reflected therein, the language used in those documents, and the orders and rulings they contain, but not of the truth of any hearsay statements or disputed factual matters asserted within them. (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882; *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375.) Only matters that are reasonably beyond dispute are subject to judicial notice. (*Tenet Healthsystem Desert, Inc. v. Blue Cross of California* (2016) 245 Cal.App.4th 821, 835.)

The unopposed request for judicial notice is **GRANTED**.

I. Brief Factual and Procedural Background

Defendant Antioch Dunes does business as Delta View Post Acute ("Delta View") and operates a skilled nursing facility at 1210 A Street, Antioch, California. (Complaint ("Compl.") at 2:1-7.) This